Check the top box if your case involves parental responsibility or parenting time (custody/visitation rights), or relocation of a child. Check the other box if your case involves delinquent minor proceedings. If these don't apply, skip this section.

☐ **THIS APPEAL INVOLVES A MATTER SUBJECT TO EXPEDITED DISPOSITION UNDER RULE 311(a).**

☐ **THIS APPEAL INVOLVES A DELINQUENT MINOR PROCEEDING UNDER THE JUVENILE COURT ACT.**

APPLICATION FOR WAIVER OF APPELLATE COURT FEES

IN THE APPELLATE COURT OF ILLINOIS

Appellate Case No.: _____

Appellate District: _____

Enter the appellate court case number (if you have it) and the appellate district where the appeal was filed.

In re: _____

If the trial court case name began with "In re" enter that name.

Enter the case information below as it appears on your trial court documents.

PLAINTIFF/PETITIONER(S):

_____

First, Middle, and Last Name, or Business Name

☐ **Appellant** ☐ **Appellee**

Check the box to show who filed the appeal (Appellant) and who is responding to the appeal (Appellee).

v.

DEFENDANT/RESPONDENT(S):

_____

First, Middle, and Last Name, or Business Name

☐ **Appellant** ☐ **Appellee**

Check the box to show who filed the appeal (Appellant) and who is responding to the appeal (Appellee).

Enter the trial court info below for the case you are appealing.

Appeal from the Circuit Court of

_____

County

Trial Court Case No.:

_____

Honorable

_____

Judge, Presiding

1. BASIC INFORMATION

A. Name:_____

First *Middle* *Last Name*

B. Address:_____

Street, Apt. # *City* *State* *Zip Code*

C. I cannot afford to pay the court fees, costs, and charges in this case.

D. I am currently incarcerated. ☐ No ☐ Yes

If you checked "Yes" in 1D because you are incarcerated, you must:

Write your inmate I.D.#_____ **AND**

Write the current balance of your trust account $_____.

▸ **Skip section 2 and section 3.** Go to section 4, starting on page 2, and **you must complete the rest of the form**.

2. HOUSEHOLD INFORMATION

List the number of people who live with you who you support. Support means the people rely on you financially.

A. I support _____ adults (not counting myself) who live with me.
# of Adults

B. I support _____ children under 18 who live with me.
# of Children Under 18

3. PUBLIC BENEFITS

Check all the benefits that you currently receive. Be prepared to provide proof that you currently receive at least 1 of the checked benefits if asked.

I currently receive the following public benefits *(check all that apply)*:

- ☐ SSI (Supplemental Security Income, not Social Security)
- ☐ SNAP (Supplemental Nutrition Assistance Program/Food Stamps
- ☐ AABD (Aid to the Aged, Blind and Disabled)
- ☐ TANF (Temporary Assistance for Needy Families)
- ☐ General Assistance Program (GA), Transitional Assistance, or State Children and Family Assistance

STOP: Read this note to see **what to complete next.**

☐ I checked one of the public benefit boxes in section 3.

▸ **Skip section 4 and section 5.** Go to page 4 and sign the form. You qualify for a full fee waiver. (735 ILCS 5/5-105(a)(2)(i), (b)(1)).

- OR -

☐ I did **not** check any of the public benefit boxes in section 3.

▸ **Complete both columns of section 4 and the rest of the form**.

4. FINANCIAL INFORMATION

Do not fill out this section if you checked any boxes in section 3. Skip to page 4 and sign the form.

*If you did **not** check any boxes in section 3, fill out information in sections A, B, C, D, and E below for **both** the past month and the past 12 months. Be prepared to provide proof of your income, the value of your belongings (including real estate), and your expenses, if asked.*

A. I have a **pending** application for 1 or more of the benefits listed in section 3:

☐ Yes ☐ No

MONTHLY INCOME

B. I received the following income (money) in the **past month**. List the gross (before taxes) amount *(check all that apply)*:

Type	Total received in the past month
☐ No income	
☐ My employment	$_____
☐ Social Security (not SSI)	$_____
☐ Child Support	$_____
☐ Unemployment	$_____
☐ Pension	$_____
☐ Money from other household members:	$_____
☐ Other income, including any money received from family and friends that is not listed above (*list type and amount*)	
_____	$_____
_____	$_____
Total of all money received in the past month	**$_____**

YEARLY INCOME

C. I received the following income (money) in the **past 12 months**. List the gross (before taxes) amount (check all that apply):

Type	Total received in the past 12 months
☐ No income	
☐ My employment	$_____
☐ Social Security (not SSI)	$_____
☐ Child Support	$_____
☐ Unemployment	$_____
☐ Pension	$_____
☐ Money from other household members:	$_____
☐ Other income, including any money received from family and friends that is not listed above (*list type and amount*)	
_____	$_____
_____	$_____
Total of all money received in the past 12 months	**$_____**

MONTHLY EXPENSES

D. I have the following **monthly expenses** *(check all that apply. If you share expenses with someone, list only the amount you pay)*:

Type of expense	Amount per month
☐ Rent	$_____
☐ Home mortgage	$_____
☐ Other mortgage	$_____
☐ Utilities	$_____
☐ Food	$_____
☐ Medical	$_____
☐ Vehicle, including loans	$_____
☐ Childcare	$_____
☐ Child support	$_____
☐ Other monthly expenses not listed above *(list type and amount)*	
_____	$_____
_____	$_____
Total of all expenses in the past month	**$_____**

☐ None of the above

ITEMS OF VALUE

E. I own the following **items and their value is** *(check all that apply)*:

Item	Total value
☐ Bank accounts and cash	$_____
☐ Home	$_____
The total I owe on my home mortgage is $_____	
☐ Other real estate (not including the house I live in)	$_____
☐ 1st vehicle worth	$_____
Is the 1st vehicle paid off?	☐ Yes ☐ No
☐ 2nd vehicle worth	$_____
Is the 2nd vehicle paid off?	☐ Yes ☐ No
☐ Other *(list items and value)*	
_____	$_____
_____	$_____

☐ None of the above

5. HARDSHIP INFORMATION *(Optional)*

If there is additional information you think the judge should know about why you cannot afford to pay the court fees, include that information here.

It would be a substantial hardship for me or my family if I have to pay the fees, costs, and charges because:

SIGN

Under 735 ILCS 5/1-109, my signature means that:

1) Everything in this document is true and correct, or I have been informed or I believe it to be true and correct, and

2) I understand that making a false statement on this form is perjury and has penalties provided by law.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/_____ Print Name _____

☐ **I am completing this form for myself**

Phone Number _____ Email (if you have one) _____

Address _____

Street, Apt. # *City* *State* *Zip Code*

Be sure to **check your email every day** so you do not miss important information or documents from other parties or from the court.

☐ **I am a lawyer completing this form on behalf of a client** (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____

Street, Apt. # *City* *State* *Zip Code*

WHAT'S NEXT

NEXT STEP:

File this form with the Appellate Court Clerk's office. You should file this form when you file your first document with the appellate court. You are responsible for knowing the deadlines to file documents with the appellate court.

THEN:

It might take the appellate court a couple of weeks to review your *Application*. If the court needs more information from you, the clerk will notify you. This may include documents showing your income, value of belongings (including real estate) and expenses. The court will make a decision, and you will be mailed or emailed a copy of the *Order for Waiver of Appellate Court Fees*, which will show if you must pay any court fees.

If the court decides you have to pay all or some of the court fees, you have to pay by the deadline set in the *Order for Waiver of Appellate Court Fees*. If you do not pay by the deadline, the court may dismiss your case or find against you.

Learn more about each step in the process by reading through our Instructions document: ilcourts.info/appl-how-to-fee-waiver